

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

15. DAVID KNIGHT V. AUBREY KNIGHT

23FL0645

Respondent filed a Request for Order (RFO) on November 13, 2025, seeking enforcement of the judgment and Family Code section 2030 attorney's fees. Respondent concurrently filed an Income and Expense Declaration. This is a post-judgment request for enforcement, and as such Family Code section 215 applies. Proof of Service shows Petitioner was mail-served on January 7, 2026, with address verification. Enforcement of the judgment and attorney's fees do not fall within the exceptions of Family Code section 215 that allow for mail service with address verification. The public policy behind Family Code § 215 is to ensure actual notice to a party where matters such as custody are often ongoing past final judgment in a case. The policy is to treat the new motion as akin to a newly filed Complaint. Therefore, personal service is required.

Respondent appeared for the hearing on February 5, 2026. Petitioner failed to appear. Respondent requested the matter be continued to allow additional time to perfect service. The court granted the request to continue and scheduled the matter for a hearing on April 9, 2026 at 1:30 PM in Department 5.

Respondent filed a Proof of Personal Service on March 18, 2026, showing that the process server substitute served Petitioner on March 13, 2026. Petitioner was subsequently electronically served on March 17, 2026. The court finds service to have been perfected.

Respondent filed a Supplemental Declaration on March 25, 2026. It was mail-served the same day. Respondent is seeking enforcement of the judgment that Petitioner pay the \$600,000 equalization payment along with legal interest in the amount of \$42,000, for a total payment of \$642,000. Additionally, Respondent is seeking \$5,000 in attorney's fees for being forced to file this motion to enforce the judgment. Additionally, Respondent is seeking \$3,500 in Family Code section 271 sanctions for the behavior of Petitioner in avoiding service and the additional fees incurred to effectuate service.

Petitioner has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants Respondent's motion in its entirety. Petitioner is ordered to pay the equalization payment of \$600,000, along with legal interest, on or before May 1, 2026. Petitioner is to withdraw the funds from his 401(k) as set forth in the parties' judgement provision 7.01.

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Pursuant to provision 12.08 of the parties' judgment, the court grants Respondent's request for reasonable attorney's fees in the amount of \$5,000. Petitioner is ordered to pay Respondent's counsel, Aaron Dosh \$5,000 as and for attorney's fees. The payment is due on or before May 1, 2026.

"Section 271 provides that a family court may impose an award of attorney fees and costs 'in the nature of a sanction' where the conduct of a party or attorney 'frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.' (§ 271, subd. (a).)" In re Marriage of Tharp, (2010) 188 Cal.App.4th 1295, 1316. "Expressed another way, section 271 vests family law courts with an additional means with which to enforce this state's public policy of promoting settlement of family law litigation, while reducing its costs through mutual cooperation of clients and their counsel." *Id.* at 1318.

The court finds Petitioner's actions fall squarely within the prohibited behaviors outlined in Family Code section 271. The court grants Respondent's request for sanctions in the amount of \$3,000 payable directly to Respondent's counsel. Petitioner is ordered to pay Respondent's counsel, Aaron Dosh, \$3,000 as and for sanctions in the form of attorney's fees on or before May 1, 2026.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT GRANTS RESPONDENT'S MOTION IN ITS ENTIRETY. PETITIONER IS ORDERED TO PAY THE EQUALIZATION PAYMENT OF \$600,000, ALONG WITH LEGAL INTEREST, ON OR BEFORE MAY 1, 2026. PETITIONER IS TO WITHDRAW THE FUNDS FROM HIS 401(K) AS SET FORTH IN THE PARTIES' JUDGEMENT PROVISION 7.01.

PURSUANT TO PROVISION 12.08 OF THE PARTIES' JUDGMENT, THE COURT GRANTS RESPONDENT'S REQUEST FOR REASONABLE ATTORNEY'S FEES IN THE AMOUNT OF \$5,000. PETITIONER IS ORDERED TO PAY RESPONDENT'S COUNSEL, AARON DOSH \$5,000 AS AND FOR ATTORNEY'S FEES. THE PAYMENT IS DUE ON OR BEFORE MAY 1, 2026.

THE COURT GRANTS RESPONDENT'S REQUEST FOR SECTION 271 SANCTIONS IN THE AMOUNT OF \$3,000 PAYABLE DIRECTLY TO RESPONDENT'S COUNSEL.

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PETITIONER IS ORDERED TO PAY RESPONDENT'S COUNSEL, AARON DOSH, \$3,000 AS AND FOR SANCTIONS IN THE FORM OF ATTORNEY'S FEES ON OR BEFORE MAY 1, 2026.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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16. KATIE MOYER V. RODNEY LONG

PFL20190731

Respondent filed an ex parte application for emergency orders on January 15, 2026. The court denied the request on January 16th. Respondent filed a Request for Order (RFO) on January 16, 2026, seeking a modification of child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 13, 2026 and a review hearing on April 9th. Petitioner was personally served on January 17, 2026.

The court issued an ex parte minute order on January 28, 2026, reassigning the CCRC appointment. Parties were mailed copies at their addresses listed with court.

Only Respondent appeared at the CCRC appointment. As such, a single parent report was filed with the court on February 13, 2026 and mailed to the parties on February 18th.

Petitioner filed a Declaration regarding the missed CCRC appointment on February 17, 2026. Respondent was mail served on February 17th. Petitioner asserts she never received the reassignment order and appeared at the originally scheduled location. Petitioner is requesting to be referred back to CCRC.

Respondent filed a Declaration on February 23, 2026. Petitioner was served on February 24th.

Respondent filed additional Declarations on March 16, 2026. They were served on March 16, 2026.

Petitioner filed a Responsive Declaration on March 18, 2026. It was served on March 11, 2026. Petitioner objects to the requests made by Respondent and requests the current orders remain in full force and effect. Petitioner proposes slight modifications to the current orders.

Respondent filed a Declaration on April 1, 2026. There is no Proof of Service for this document, and as such, the court has not considered it.

Petitioner filed a Notice of Objection to Respondent's April 1st Declaration. The court finds the objections to be moot.

The court finds good cause to rerefer the parties to CCRC. Petitioner is admonished to keep her address on file with the court current. Parties are to attend CCRC on Friday, May 1st at 9:00 AM and return for a review hearing on Thursday, June 25th at 1:30 PM in